IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.1
CA (CAA)/1/230/AMR/2025

IN THE MATTER OF:

RVR Marine Products Ltd (Transferor Company) with Sun Bitess Pvt Ltd (Transferee Company) …. Applicants

Under Section: 230 to 232 of Companies Act, 2013

Order delivered on 17.07.2025

CORAM:
SHRI UMESH KUMAR SHUKLA **SHRI KISHORE VEMULAPALLI**
HON'BLE MEMBER (TECHNICAL) **HON'BLE MEMBER (JUDICIAL)**

PRESENT:

For the Appellant : Mr. M. Vijaya Kumar, PCS

ORDER

This matter was earlier reserved for orders on 05.06.2025 by this Bench. However, it has come to the notice of the Tribunal that the Transferor Company, M/s. RVR Marine Products Ltd., was admitted into Corporate Insolvency Resolution Process (CIRP) in TCP (IB)/101/7/AMR/2019, vide order dated 30.10.2019, and Resolution Plan was approved by this Tribunal vide its order dated 02.11.2021, where M/s. Sun Bitess Pvt Ltd., Transferee Company herein was the Successful Resolution Applicant (SRA). However, no progress report has been filed and this Tribunal is not aware of the implementation of the Resolution Plan. However, from the balance sheet of the Transferor Company filed in this Petition, it appears as that the Resolution Plan amount has not been brought into the CD by the SRA. It is also observed that as per the Resolution Plan approved, the resolution plan amount of Rs.38 crores was to be brought by the SRA into the Transferor Company in the following manner:

S. No.	Particulars	Amount (in Rs.)
1	CIRP Costs	25,00,000
2	Secured Financial Creditor	11,75,00,000
3	Operational Creditors other than the employees and directors	nil
4	Employees and Workmen	Nil
	Sub Total (A)	**12,00,00,000**
5	Infusion of working Capital	2,00,00,000
	Sub Total (B)	**2,00,00,0000**
6	Acquisition of land	10,00,00,000
7	Addtl.Civil Works /ETP etc.	4,00,00,000
8	Additional Equipments	4,00,00,000
9	Infusion of Addtl. Working Capital	6,00,00,000
	Sub Total of Expansion Amount (C)	**24,00,00,000**
	Total amount of the Resolution Plan (A+B+C)	**38,00,00,000**

This Bench is of the view that without the implementation of the Resolution Plan, the Transferor Company cannot be merged with the Transferee Company. Accordingly, the matter was posted today for clarification. At this juncture, PCS for the Applicants sought leave of this Bench to withdraw the present petition. Permission is granted. **Accordingly, CA (CAA)/1/230/AMR/2025 is dismissed as withdrawn.**

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)